

Nagendra Urf Bablu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2022 · Writ-C No. 18341 of 2022 · **Writ disposed; para 6.8 objection directed with coercive-action stay**

HEADNOTE

The Allahabad High Court disposed of a writ challenging an assessing officer's demand notice and recovery certificate without examining merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within four weeks, with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Nagendra, also known as Bablu, petitioned the Allahabad High Court to quash notice no. 7177 dated 18 December 2021 and recovery certificate no. 20220101172000120 of the same date issued by the Executive Engineer (Assessing Officer), Purvanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division-I, Fatehpur, and to stay their enforcement. After adjournments for instructions, counsel for the distribution company stated that the petitioner could file an objection to the demand, to be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

para 6.8 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ challenging an assessing officer's demand notice and recovery certificate is disposed of by granting the consumer liberty to submit an objection under para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after reasonable opportunity of hearing, with a time-bound stay of coercive action on the impugned demand. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The writ against the assessing officer's demand and recovery certificate was disposed of without a merits decision, relegating the consumer to a para 6.8 objection before the licensee. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The assessing officer was directed to decide a para 6.8 objection in accordance with law after hearing within four weeks, and coercive action on the demand was stayed for eight weeks or until that disposal, whichever is earlier. ¶ 4-5

assessment-6.8-alternate-remedy The Court treated the statutory objection under para 6.8 as the appropriate forum for the challenge to the impugned assessment demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND NOTICE AND RECOVERY CERTIFICATE

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4